

OVERVIEW

A License Exempt Provider charged and/or convicted of an exclusionary crime will be denied at application or have their provider enrollment closed. All exclusionary crimes will end provider enrollment or make provider ineligible to become a provider. See MCL-Crime Code List on page 3.

A Licensed Child Care Provider conviction of a mandatory denial crime will end the provider's ability to participate and bill for all Child Development and Care (CDC) Scholarship children. A Licensed Child Care Provider will be denied for the exclusionary period for convictions for crimes listed on the Crime Code List in accordance with MCL 722.115R. Any pending charges by a Licensed Provider will be reviewed by Child Care Background Check (CCBC) Unit and shared with the Licensing Consultant for a Conducive Assessment if the charge is in relation to the welfare of the child.

A denied License Exempt Provider can be determined eligible through an Administrative Review; see [BEM 704](#)

When applicable, these requirements also apply to adult household members, age 18 and over, who live with the provider or license exempt facility staff members.

The department shall review the criminal history information and may require additional follow-up or review. The department reserves the right to deny enrolment based on the provider or child care setting not being conducive to the welfare of the children.

CRIME CODES

The department will follow the Child Protection Law Definitions of child abuse, neglect and child endangerment, see [PSM 711-2, Definition, Responsibilities and Maltreatment Types](#), when charges/convictions indicate involvement of child or minor and is not otherwise indicated on Criminal Code List (MCL 722.115R).

Crime Codes follow MCL 722.115R and can be found from the Michigan Department of Health and Human Services (MDHHS) website under policy or by clicking this link: [MCL - Section 722.115r - Michigan Legislature](#).

**MANDATORY
DENIAL**

There are crimes in the following categories for which charges and/or convictions may result in the mandatory denial or closure of a provider's enrollment:

- Arson.
- Assault or battery.
- Child and vulnerable adult abuse/neglect.
- Crime against a child, including child pornography.
- Criminal sexual conduct.
- Homicide.
- Kidnapping.
- Spousal abuse.

Child Care Provider – Crime Code List Reference: MCL 722.115r		
MANDATORY DENIAL	Felony	Misdemeanor - Violent
	Sex Offender	Child Abuse
	Murder or homicide	Child Endangerment
	Child abuse or child neglect	Sexual Assault
	Crime against a minor child, including but not limited to child pornography	Child Pornography
	Spousal Abuse or domestic violence	
	Involving Rape or Sexual Assault	
	Kidnapping	
	Arson	
FELONY 10 Year (Includes attempt or conspiracy to commit)	Physical assault or battery	
	Human trafficking or involuntary servitude	
	Harm or threatened harm to individual	
	Use of firearms or dangerous weapon	
	Cruelty or torture of any person	
	Substantial misrepresentation of material fact	
	Bribery	
	Fraud	
	Larceny	
	Embezzlement	
	Theft	
	Home invasion	
	Breaking and entering	
	Receiving and concealing stolen property or crime of similar statute	
	Habitual Offender	
	Operating motor vehicle while intoxicated or impaired causing serious injury or death	
	Involving the use of computer or internet to commit crime	
	Cruelty to animals including fighting, killing, torturing and abandoning	
	Aggravated stalking	
	Aggravated indecent exposure	
FELONY 7 Years (Includes attempt or conspiracy to commit)	Indecent exposure by a sexually delinquent person	
	Pandering	
	Transporting an individual for prostitution	
	Keeping, maintaining or operating a house of ill fame	
MISDEMEANOR 5 YEARS (Includes attempt or conspiracy to commit)	Drug offense	
	Attempt or conspiracy to commit a felony drug offense	
	Any other state or federal equivalent	
	Operating under the presence of a controlled substance	
	Use or possession of controlled substance	
	Selling or furnishing a controlled substance to a minor	
	Using computers to commit a crime	
	Substantial misrepresentation of a material fact	
	Embezzlement	
	Breaking and entering	
	Any other fraudulent crime except retail fraud in 3rd degree, petty theft or shoplifting	
	Stalking	
	Assault	
	Spousal abuse	
	Domestic Violence	
	Weapons offense	
	Harboring runaways	
	Aiding and abetting	
	Arson	

* License exempt provider charged with a Mandatory Denial Crime will end the provider enrollment; all other exclusionary crimes for all provider types will end provider enrollment at conviction. When applicable these requirements apply to adult household members. (BEM 705)

LEGAL BASE

The Child Care and Development Block Grant (CCDBG) Act (42 USC § 9858 et seq.), as amended by the CCDBG Act of 2014 (Pub. L. 113-186).
45 CFR Parts 98 and 99.
Social Security Act, as amended 2016.
Child Care Organizations Act, 1973 PA 116, as amended 2017.
Sex Offenders Registration Act, 1994 PA 295 as amended.